SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T. REYES II
HEARING DATE: 04/29/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 16

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties, or failure to specify what specific provisions of the tentative ruling is contested, will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-
https://www.zoomgov.com/j/1619504895?pwd=N0V1N3JFRnJ0TEVoSDNrTGRzakF3UT09
ID: 161 950 4895
Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
TENTATIVE RULING:

This Case Management Conference (CMC) trails the Motions to file Records Under Seal, Lines 11, 12 and 13. This CMC is continued to trail the discovery motion to be heard on June 17, 2026 at 9:00 a.m. Parties are ordered to prepare an updated CMC statement.

2. 9:00 AM CASE NUMBER: C25-02047
CASE NAME: PETER MOREN VS. KATHRYN ROGERS
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
<u>*TENTATIVE RULING:*</u>

This CMC trails the Discovery Motion, Line 24. If the tentative ruling for Line 24 is not contested, then the CMC is continued to October 27, 2026 at 8:30 a.m. in Department 16. The Parties are ordered to meet and confer to discuss alternative dispute resolution and are ordered to file a further case management conference statement.

3. 9:00 AM CASE NUMBER: C24-00719
CASE NAME: EMILY CROSS VS. TARIM HOLDINGS, LLC
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
<u>*TENTATIVE RULING:*</u>

This CMC trails the Motion to Strike in Line 16. If the tentative ruling for Line 16 is not contested, then the CMC is continued to July 23, 2026 at 8:30 a.m. in Department 16. The Parties are ordered to meet and confer to discuss alternative dispute resolution and are ordered to file a further case management conference statement.

Law & Motion

4. 9:00 AM CASE NUMBER: C22-01214
CASE NAME: GABRIELA BENSON BODDEN VS. VIKTORIYA VOLZHENINA
HEARING IN RE: MOTION TO DISMISS
FILED BY:
<u>*TENTATIVE RULING:*</u>

Defendant Viktoriya Volzhenina's Motion to Dismiss the Action Pursuant to Code of Civil Procedure §§ 583.210 and 583.250 is **<u>off calendar</u>.**

On January 2, 2026, Plaintiffs filed a notice of appeal from the court's December 19, 2025 order, which granted Defendant's motion to set aside the default and quash service of the summons and first amended complaint. The appeal is pending in Court of Appeal Case No. A175307, First Appellate District, Division 2.

"[T]he perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order." (CCP § 916(a).)

"The purpose of the rule depriving the trial court of jurisdiction during the pending appeal is to protect the appellate court's jurisdiction by preserving the status quo until the appeal is decided. The rule prevents the trial court from rendering an appeal futile by altering the appealed judgment or order by conducting other proceedings that may affect it. (*In re Marriage of Horowitz* (1984) 159 Cal.App.3d 377, 381.)

"Accordingly, whether a matter is 'embraced' in or 'affected' by a judgment within the meaning of section 916 depends upon whether postjudgment trial court proceedings on the particular matter would have any impact on the 'effectiveness' of the appeal. If so, the proceedings are stayed; if not, the proceedings are permitted." (*Ibid*.; see also, *Elsea v. Saberi* (1992) 4 Cal.App.4th 625, 629.)

Granting this motion would dismiss the action entirely, rendering the appeal moot. Accordingly, the Court declines to rule pending resolution of the appeal. Defendant may re-notice the motion after the remittitur issues.

5. 9:00 AM CASE NUMBER: C22-01563
CASE NAME: CATHERINE ANGWIN GASCA VS. CITY OF BRENTWOOD
HEARING ON SUMMARY MOTION
FILED BY:
TENTATIVE RULING:*

The City of Brentwood's motion for summary judgment and/or adjudication is **denied.**

The City brings this a motion for summary judgment, or alternatively, a motion for summary adjudication, however, the notice of motion did not specify the issues for adjudication. (Rules of Court, rule 3.1350(b).) Further, the issues listed in the separate statement are not issues appropriate for adjudication. "A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty."(Code Civ. Proc., § 437c(f)(1).) Finally, there is only one cause of action for dangerous condition of public property alleged against the City and thus, this motion is properly one for summary judgment only.

Plaintiff alleges that on June 18, 2021, she "tripped and fell on or near Garin Pkwy and Sunset Rd., Brentwood, County of Contra Costa, on a pre-existing uneven sidewalk, owned or controlled by City of Brentwood". (Comp. p. 4.)

A claim for dangerous condition of public property is permitted by statute, Government Code section 835. "That statute provides in pertinent part that 'a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and either: [¶] (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or [¶] (b) The public entity had actual or constructive notice of the dangerous condition… .' (Gov. Code, § 835.)" (*Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1133.)

There are two main issues here: (1) whether the defect in the sidewalk was a dangerous condition and (2) whether the City had notice of the defect.

Dangerous Condition

Government Code section 830 defines a dangerous condition as “a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.”

“The existence of a dangerous condition ordinarily is a question of fact, but the issue may be resolved as a matter of law if reasonable minds can come to only one conclusion. (*Peterson v. San Francisco Community College Dist.*, *supra*, 36 Cal. 3d at p. 810.)” (*Zelig, supra,* 27 Cal.4th at 1133.) “ ‘Where reasonable minds can reach only one conclusion—that there was no substantial risk of injury—the issue is a question of law, properly resolved by way of summary judgment.’ ” [Citations.]” (*Stathoulis v. City of Montebello* (2008) 164 Cal.App.4th 559, 567.)

In sidewalk cases, courts are encouraged not to rely solely on the measurement of the defect. “ ‘[A]lthough the defect's size “may be one of the most relevant factors” to the court’s decision.’ [Citations.] ‘Instead, the court should determine whether there existed any circumstances surrounding the accident which might have rendered the defect more dangerous than its mere abstract depth would indicate.’ [Citation.]” (*Stack v. City of Lemoore* (2023) 91 Cal.App.5th 102, 113; see also, *Fielder v. City of Glendale* (1977) 71 Cal.App.3d 719, 728.)

The City cites to *Stathoulis, supra,* and *Huckey v. City of Temecula* (2019) 37 Cal. App. 5th 1092, 1104 to argue that a defect of less than one and half inches are trivial. As Plaintiff points out, however, the defects in *Stathoulis* and *Huckey* were less than one inch. As explained in *Stack, supra,* “[w]e are aware of only one case to squarely hold a sidewalk defect of one and one-half inches or greater not to be a dangerous condition as a matter of law. (See *Beck [v. Palo Alto]* (1957) 150 Cal.App.2d [39,] 43–44 [maximum one- and seven-eighths-inch-deep sidewalk defect].) *Nicholson v. Los Angeles* (1936) 5 Cal.2d 361 is the case most commonly cited in support of the purported one- and one-half-inch threshold; but while that case indeed featured a maximum one- and one-half-inch-deep sidewalk defect, the Supreme Court did not decide whether or not the defect was dangerous as a matter of law. Rather, the court assumed it *was* dangerous…”. (*Stack, supra*, 91 Cal.App.4th at 112 fn. 8.) “ ‘[W]hen the size of the depression begins to stretch *beyond one inch* the courts have been reluctant to find that the defect is not dangerous as a matter of law,’ i.e., that it is minor or trivial. [Citation.]” (*Ibid*.)

Here, the City argues that the defect in the sidewalk was trivial. For this argument, they rely on the declaration of Brad Wong, a professional mechanical engineer. Wong inspected the area on March 15, 2024, three years after the accident. He noted that the City had already repaired the sidewalk by grinding it down. He also reviewed the photographs taken by Plaintiff’s husband. (Wong dec. ex. B.) According to Wong, his measurements of the height differential were 5/8th of an inch or less. (Wong dec. ¶4.)

The photographs taken by Plaintiff’s husband show a key and then a thumb in the sidewalk depression to show the amount of the depression. These photographs were taken within two weeks of the accident, before the defect was repaired. (Gasca depo. 72:15-16.) Wong does not explain whether these photographs were taken into consideration with his analysis. Further, Wong does not explain whether he took measurements of the key or the husband's thumb or requested such measurements. Finally, Wong's analysis occurred after the sidewalk was repaired and he has not sufficiently explained why his measurements of the repaired sidewalk can be used to show the nature of the defect when the accident occurred. Plaintiff's objection number 18 to Wong's declaration paragraph 4 is sustained.

Overall, the Court finds that Wong's declaration is insufficient to show that the defect was below one inch at the time of the accident. The City has not convinced the Court that the defect is trivial as a matter of law and has not met their burden on this issue.

To the extent, the City has met their burden on this issue, there is a triable issue of material fact. Plaintiff provides a photograph of the key used in the sidewalk photographs with a measuring tape. (Gasca dec. ex. 1 and 2; see also Gasca depo. 72:15-16; 74:14-23.) Considering Plaintiff's husband's photographs and the photograph of the key with the measuring tape, the sidewalk defect appears to be over 1 1/4 inches. Given that the defect appears to be more than one inch, the Court finds that there is a triable issue of material fact regarding whether the defect was trivial.

The City argues that Plaintiff's identification of the fall location in the photographs should be discounted because Plaintiff could not identify the fall location on Google map photographs. The testimony cited by the City does not support such a broad statement. Rather, it appears that in her deposition, Plaintiff did not identify the street names where the accident occurred. (See, fact 9: Gasca Depo 18:17-20.) Further, Plaintiff also testified that the photographs taken by her husband showed the location of her fall. (Gasca depo. 75:7-15.)

The City also argues that the other factors, including lack of prior accidents and the accident occurring in daylight, should be considered when determining whether there is a trivial defect. While these factors may be considered at trial, given the nature of the sidewalk depression here, the Court is not convinced that these other factors can sufficiently overcome the sidewalk differential to allow the Court to find the lack of a dangerous condition as a matter of law.

The City also argues that Plaintiff was prone to falls and other injuries. The City cites no case holding that Plaintiff's medical history and her physical condition at the time of the accident are factors to be considered when deciding whether the defect was trivial.

<u>Notice of the Dangerous Condition</u>

At trial, Plaintiff must show that the City had actual or constructive notice of the dangerous condition. While Plaintiff has the burden of proving notice at trial, the City has the burden on this motion of showing a lack of notice (both actual and constructive) or showing that Plaintiff does not have evidence to show notice.

"'"To establish actual notice, '[t]here must be some evidence that the employees had knowledge of the particular dangerous condition in question'; 'it is not enough to show that the [public entity's] employees had a general knowledge' that the condition can sometimes occur."

[Citation.] To establish constructive notice, the plaintiff must prove “the condition had existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character.” (§ 835.2, subd. (b).)’ [Citation.] ” (*Restivo v. City of Petaluma* (2025) 111 Cal.App.5th 267, 275.)

The City points to special interrogatories where Plaintiff was asked if she contends that the City had actual or constructive notice of the defect and then, that same interrogatory also asked Plaintiff to state all facts in support of that contention. (Ex. D-2, interrogatories 14 and 17.) Plaintiff’s interrogatory responses was “yes” and she did not list any facts in support of the contention. But these interrogatories included two questions and thus, violated the rules of discovery. (Code Civ. Proc., § 2030.060(f) [“No specially prepared interrogatory shall contain subparts, or a compound, conjunctive, or disjunctive question.”].) The Court finds that Plaintiff’s interrogatory responses to 14 and 17 cannot be used as factually devoid responses and thus, cannot be used to shift the burden here.

The City points to Plaintiff’ deposition where she testified that she did not know whether the City had notice of the condition. (Gasca depo. 32:2-23.) Plaintiff’s testimony as to her understanding of City’s knowledge of the condition does not shift the burden as Plaintiff is not expected to know whether or not the City had notice of the condition.

Finally, the City’s evidence includes a declaration by Chris Ziemann, Streets Manager, declaring that the City received no reported incidents for the accident area from 2016 to 2022. (Ziemann dec.) Ziemann’s declaration might be sufficient to shift the burden on actual notice, but it does not show whether the City had constructive notice.

The City also points to contracts with had with Precision Emprise, but fail to show how those contracts addressed the issue of the City’s knowledge of the defect.

In reply, the City relies on deposition testimony from Ziemann to try to show that the City regularly inspected the sidewalk, and thus did not have constructive notice. In some cases, a public entity can shift the burden by showing the last time they inspected the area and that they found no dangerous condition. (See, .e.g. Government Code section 835.2(b)(1), (2).) Is that this argument and the evidence should have been presented in the moving papers. The City could have included this evidence by adding it in Ziemann’s declaration. And in any event, in Ziemann’s deposition he testified that no one inspected that portion of the sidewalk between 2007 and November 2021. (Ziemann depo. 43:18-44:24.) The failure to inspect a sidewalk for five years before the accident occurred is insufficient to show that the City did not have constructive notice of the dangerous condition.

The Court finds that the City has not met its burden of showing a lack of constructive notice of the dangerous condition.

<u>Objections to Evidence</u>

The Court declines to rule on objections 1 through 17, as the medical records were not material to the disposition of this motion. (Code of Civil Procedure section 473c(q).)

Objection 18 is sustained.

6. 9:00 AM CASE NUMBER: C22-01601
CASE NAME: CLAYTON VALLEY SHOPPING CENTER, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY VS. MATT DELIMA
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE FRANK D. PRESTO III**
FILED BY: KNM CLAYTON, LLC
****TENTATIVE RULING:****

Summary

This tentative ruling applies to Lines 6, 7 and 8. After review of the moving papers, and declarations of Counsel Frank D. Presto III, who is Counsel of Record for Defendants Matt Delima, Jason Haugen, and KNM Clayton, LLC's, the Court finds good cause to grant his Motion to be Relieved as Counsel of Record for Defendants. Mr. Presto's Motions to Be Relieved as Counsel of Record for Matt Delima, Jason Haugen and KNM Clayton LLC are **granted**.

The Court will execute the three proposed orders lodged with the Court on March 12, 2026. Counsel is ordered to provide notice of the Trial Readiness Conference and Jury Trial scheduled for May 5 and May 18, 2026 to his former clients. No appearance is required at the hearing on April 29, 2026.

7. 9:00 AM CASE NUMBER: C22-01601
CASE NAME: CLAYTON VALLEY SHOPPING CENTER, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY VS. MATT DELIMA
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE FRANK D. PRESTO III**
FILED BY: HAUGEN, JASON
****TENTATIVE RULING:****

See Line 6, above.

8. 9:00 AM CASE NUMBER: C22-01601
CASE NAME: CLAYTON VALLEY SHOPPING CENTER, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY VS. MATT DELIMA
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE FRANK D. PRESTO III**
FILED BY: DELIMA, MATT
****TENTATIVE RULING:****
See Line 6, above.

9. 9:00 AM CASE NUMBER: C22-01852
CASE NAME: MANSOUR BOROUMAND VS. MOJGAN SHAHBAZI
***HEARING ON MOTION IN RE: LEAVE TO FILE AN AMENDMENT TO ANSWER (ADVANCED FROM 8/19/26)**
FILED BY: SHAHBAZI, MOJGAN
****TENTATIVE RULING:****

Parties to appear. Defendants Mojgan Shahbazi, Matthew Gheisari, and Oakley Road Holdings, LLC, bring this motion to file an amended answer to the complaint of plaintiff Mansour Boroumand, who opposes the motion. Because defendants have failed to comply with the California Rules of Court, rule 3.1324, parties shall appear to discuss next steps.

Background and Discussion

On August 31, 2022, plaintiff brought suit alleging causes of action for breach of contract and cancellation of instrument. Plaintiff claims to own 50% of defendant, Oakley Road Holdings, LLC, which, in turn, owns a real estate parcel in the City of Oakley. Plaintiff's ownership interest is alleged to derive from a loan of $950,000 made by plaintiff to the LLC. The loan was memorialized in a Convertible Promissory Note, which was subsequently converted via a Note Conversion Agreement into Plaintiff's alleged 50% ownership interest. Defendants answered and cross-complained on October 24, 2022. They twice filed amended cross-complaints before dismissing the Second Amended Cross-Complaint in August of 2023.

On March 11, 2026, defendants filed this motion to file "an amendment" to their answer. A jury trial is currently set for June 1, 2026, just less than five weeks from the hearing on this motion.

The motion is supported by a Declaration of Christopher J. Dyas, defendants' counsel. The declaration states that Mr. Dyas first became involved in the action in 2024 and, since that time, has discussed the "new" defenses at issue here with each of the three attorneys that have represented plaintiff since Mr. Dyas' involvement.

Defendants seek leave to add *unspecified text* in order to:

(1) "clarify" that their Ninth Affirmative Defense, which alleges failure of consideration because plaintiff failed to transfer the real property, encompasses plaintiff's failure to transfer money as well;

(2) to assert a failure of consideration in connection with the Note Conversion Agreement because its sole consideration was the Promissory Note, which defendants contend is void and invalid because of its failure of consideration; and,

(3) to assert the Note Conversion Agreement was never signed by defendants, and that their purported signatures were forged.

(Memorandum of Points and Authorities in Support of Motion, 3:18-4:2)

Plaintiff's opposition does not dispute the policy generally favoring amendment, but plaintiff argues in this case it would be unjust based on the sham pleading doctrine. Plaintiff specifically takes issue with the forgery assertions, pointing to the cross-complaint, as well as the amended and second amended cross-complaints, in which defendants pleaded that they signed the Note Conversion Agreement. Plaintiff additionally notes that counsel Dyas was the one to sign the Second Amended Cross-Complaint in July of 2023, significantly earlier than Dyas states he was involved in the litigation.

Plaintiff also argues that dismissal of the cross-complaint does not change the effect of the judicial admissions therein. Alternatively, if the Court does grant the motion, plaintiff asserts trial should be continued to allow plaintiff to file a demurrer and/or motion to strike.

The reply points out, inter alia, that defendants only challenge one of the three proposed amendments, and argues that the purported judicial admission regarding forgery should be used for impeachment, not to prohibit the filing of an amended answer. Defendants do not respond to the argument that they completely failed to comply with the requirements of California Rules of Court, rule 3.1324.

California Rules of Court, rule 3.1324, subdivision (a), provides that a motion to amend a pleading must include a copy of the proposed amendment or amended pleading and what allegations are proposed to be added or deleted by page, paragraph, and line number, the additional allegations are located. In addition, such a motion must be supported by a declaration which specifies (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324, subd. (b).)

The Court notes the liberal standard for granting a party, particularly a defendant, leave to amend. (See Code of Civil Procedure § 473(a)(1); see also, e.g., *Lincoln Prop. Co., N.C., Inc. v. Travelers Indem. Co.* (2006) 137 Cal.App.4th 905, 916 [court should exercise this discretion liberally in favor of amendments].) "In particular, liberality should be displayed in allowing amendments to answers, for a defendant denied leave to amend is permanently deprived of a defense." (*Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159, citing cases.)

Generally, the validity of a proposed amendment is generally not considered in deciding whether to grant leave to amend. (*California Casualty General Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280-281 [disapproved on other grounds in *Kransco v. American Empire Surplus Lines Ins. Co*. (2000) 23 Cal.4th 390, 407.])

As suggested by plaintiff's opposition, such challenges to the pleadings are more properly addressed in a demurrer or a motion to strike rather than in an opposition to a motion to amend. Still, the upcoming jury trial, as well as defendants' failure to comply with the requirements in Rule 3.1324 to explain the delay and submit a copy of the proposed pleading require an appearance and discussion on these matters.

10. 9:00 AM CASE NUMBER: C22-02429
CASE NAME: HERMITAGE BREWING CORPORATION VS. CALICRAFT LLC
***HEARING ON MOTION IN RE: CONTINUE TRIAL**
FILED BY: CALICRAFT LLC
****TENTATIVE RULING:****
Summary

Defendant Calicraft LLC's Motion to Continue Trial is **granted** based on the Declaration of its lead trial counsel that he will be unavailable due to a pending medical procedure. This ruling is based on three conditions: (1) Discovery is closed, except for expert discovery; (2) Counsel Josh Davis is ordered to provide additional information from his health care provider that verifies the facts set forth in his declaration filed on April 22, 2026 no later than ten (10) from the date of this order. Medical records or detailed medical information may be submitted under seal; (3) Counsel are ordered to meet and confer to resolve any discovery issues that are outstanding. If they are unable to resolve these discovery issues, they shall meet and confer to retain a discovery referee

Background

This case involves an alleged dispute arising out of a business partnership between two companies. Plaintiff and Cross-Defendant Hermitage Brewing Corporation ("Hermitage") is a business that operated a beer-brewing facility. Defendant and Cross-Complainant Calicraft, LLC ("Calicraft"), operates a retail beer establishment in Walnut Creek, California. For close to a decade, Hermitage produced and packaged Calicraft's beer. In its operative cross-complaint, Calicraft alleged that in 2021, Hermitage and Calicraft agreed to make Hermitage the exclusive producer of Calicraft beer. In preparation for this transition, and with Hermitage's knowledge and encouragement, Calicraft ended a long-term contract with another beer producer and invested in specialized equipment and packaging for use at the Hermitage facility in San Jose, California. During the time it entered into this contract, Calicraft alleges that Hermitage had already planned to wind-up its business, severely affecting Califcraft's business operations and supply chain. Calicraft seeks damages for a breach of contract, among other things.

This case is set for trial on May 11, 2026. Calicraft filed a Motion to Continue this Trial ("Motion") on March 24, 2026. This is the second motion to continue this trial. Calicraft makes this motion is based upon Cal. Rules of Court, Rule 3.1332, and claims that good cause exists because of the "delay in responding to discovery requests on the part of Plaintiff/Cross-Defendant." In a subsequent declaration filed by Calicraft's lead trial counsel, Josh Davis, Calicraft now states additional basis based on the unavailability of trial counsel due to a scheduled medical procedure.

Hermitage filed an opposition to this Motion on Apri 13, 2026. Hermitage contends, in its opposition, that this is second trial continuance and should be denied pursuant to California Rules of Court, Rule 3.1332(a) which states, "To ensure the prompt disposition of civil cases, the dates assigned for a trial are firm. All parties and their counsel must regard the date set for trial as certain."

Analyses

A trial continuance should be granted upon a showing of good cause. (CRC Rule 3.1332(c)). Good cause is demonstrated by a factual showing stating the reasonable grounds for the order sought. (*Board of Medical Quality Insurance v. Gherardine* (1979) 21 Cal.App.3d 669, 681.) The decision whether to grant a motion for continuance is within the trial court's discretion. (*Color-Vue, Inc. v. Abrams* (1996) 44. Cal.App.4th 1599, 1603; *Jurado v. Toys "R" Us* (1993) 12 Cal.App.4th 1615, 1617.) However, "the refusal of a continuance which has the practical effect of denying the applicant a fair hearing is reversible error." (*Oliveros v. County of Los Angeles* (2004) 120 Cal.App.4th 1389, 1395.) "Such decisions must be made in an atmosphere of substantial justice."

Pursuant to CRC Rule 3.1332(c)(1), although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include: "(1) The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances." Upon review of the declaration of Counsel Davis, the Court finds that Calicraft meets the requirement of this ground.

The Court is not persuaded that the discovery disputes and delays articulated by Calicraft are sufficiently supported by facts that show diligence by Calicraft. Although counsel's declaration state otherwise, the Court is previously unaware of any discovery disputes, as the Register of Actions contains no discovery motions filed. Nonetheless, if discovery issues prevented preparation for trial, the Court would have expected motion practice to resolve these issues.

Based on the foregoing, the Court finds good cause to continue the trial date.

Ruling

1. Defendant Calicraft LLC's Motion to Continue Trial is **granted.**

2. The Court orders that Discovery is now **closed**, except for expert discovery.

3. Counsel are ordered to meet and confer to resolve any existing discovery disputes. Since Discovery is closed, no discovery motions will be entertained by the Court, with the exception of any discovery motions related to expert discovery. If the Parties are unable to resolve the discovery issues informally, they shall meet and confer to retain a discovery referee.

4. Counsel Josh Davis is ordered to provide additional information from his health care provider that verifies the facts set forth in his declaration filed on April 22, 2026 no later than fourteen (14) from the date of this order. Medical information may be submitted under seal by hard copy to Department 16.
5. The Parties are ordered to appear via Zoom on August 27, 2026 at 8:30 a.m. for a trial setting conference.

6. Calicraft's counsel shall prepare and e-file a proposed order conforming to this ruling approved as to form by Hermitage's counsel, no later than ten (10) days from the date of this hearing, attaching a copy of this tentative ruling.

11. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
***HEARING ON MOTION IN RE: FILE RECORDS UNDER SEAL**
FILED BY: WHEATON, R.N., JEFF
****TENTATIVE RULING:****
Summary

This tentative ruling is for Lines 11, 12 and 13. The following three (3) Motions are calendared for hearing on April 29, 2026:

1. Defendant Jeff Wheaton, R.N., ("Wheaton") motion to seal Plaintiff Michelle Daly's ("Plaintiff") medical records from Persons Plastic Surgery, Elite MD, Skin Spirit Inc., Portrait Health, and For Your Eyes Only, which Defendant seek to include as exhibits in Defendants Motion for Summary Judgment filed on December 16, 2025.

2. Defendant Michael Dean Vistnes M.D. and Dean Vistnes M.D. Inc.'s (Collectively, "Vistnes") motion to seal motion to seal Plaintiff Michelle Daly's medical records from Persons Plastic Surgery, Elite MD, Skin Spirit Inc., Portrait Health, and For Your Eyes Only as exhibits in Defendants' Motion for Summary Judgment filed on December 30, 2025; and

3. Defendant Skin Spirt Essential LLC ("Skin Spirit Essential") motion to seal Plaintiff Michelle Daly's medical records from Persons Plastic Surgery, Elite MD, Skin Spirit Inc., Portrait Health, and For Your Eyes Only as exhibits in Defendants' Motion for Summary Judgment filed on December 31, 2025.

These motions are based on the legal theories that the confidentiality of medical records is governed under Federal law by the Health Insurance Portability and Accountability Act of 1996 (HIPAA) (45 C.F.R. 164.508) and under State law by the Confidentiality of Medical Information Act (CMIA) (Civil Code §§56-56.37.) This is a medical malpractice action in which Plaintiff's medical condition is at issue. As a result, Defendant must introduce into evidence Plaintiff's Sutter Roseville Medical Center medical records. Defendants argue that this motion to produce medical records under seal is an adequate measure to protect Plaintiff's privacy in her medical records and will also allow Defendant to abide by the applicable laws governing disclosure of such records. Defendant is not able to redact Plaintiff's medical records and still provide the Court with the requisite relevant information necessary for review in evaluating Defendant's Motion for Summary Judgment or, in the alternative, Summary Adjudication. Consequently, no less restrictive means exist, and this request is narrowly tailored. Moreover, there is no public interest or benefit to the public disclosure of Plaintiff's medical records.

In reviewing Plaintiff's papers, it appears that the Declaration of Plaintiff's counsel, Mark Rosenberg's, includes in its <u>caption</u> that Plaintiff opposes these Motions filed by the Vistnes parties, Skin Spirit Essential. But, Counsel does not oppose the Motions filed by Wheaton. However, upon review, there are no facts contained in the Rosenberg's declaration that address any of these three motions, nor is there a separate Memorandum of Points and Authorities that contain legal arguments on their merits. A caption opposing the motion is insufficient without an underlying Memorandum of Points and Authorities and substantive analyses and argument. Accordingly, the Court finds that there is no timely opposition addressing the arguments on the motions to seal Plaintiff's records.

On April 26, 2026, Defendants filed a reply brief asserting that Plaintiff filed no timely opposition.

<u>Background</u>

In this lawsuit, Plaintiff alleges that the Defendants committed medical malpractice and caused injury and emotion distress as a result of the cosmetic laser surgery to her face and eyes performed by Defendants. Plaintiff seeks damages from Defendants. Defendants filed these instant motions to seal records prior to and in conjunction with the hearing of their Motion for Summary Judgment.

<u>Analyses</u>

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S*. (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc*. (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779,784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].)

Even if the caption in Counsel Rosenberg's declaration are deemed to be "oppositions" to two of the motions, which this Court does not find, they are still insufficient. It is accepted that the failure to challenge a contention in a brief results in the concession of that argument. (*DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566 ["By failing to argue the contrary, plaintiffs concede this issue"]; see also *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) By failing to raise facts, arguments, and failing to address the legal authorities in Defendants' Motions, the Court finds that Plaintiff concedes all the contentions and arguments in the moving papers.

Applied here, the Court finds that failure to timely oppose the three motions, or to address any arguments raised by them in Rosenberg's declaration, is a deemed to be her consent to the granting of three motions.

After reviewing the moving papers and applying the foregoing authorities, the Court finds good cause to grant Defendants' motions to seal Plaintiff's medical records from Sutter Roseville Medical Center.

<u>Ruling</u>

1. All three motions to seal are **<u>granted</u>**. The Court does not rule on the motion for summary judgment.

2. Defendant's counsel is ordered to prepare and e-file a proposed order conforming to the tentative ruling, reviewed by Plaintiff's counsel, no later than ten (10) days from the date of this hearing, attaching a copy of the tentative ruling.

3. The hearing on the motion for summary judgment / motion for summary adjudication is continued to July 22, 2026 at 9:00 a.m. in Dept. 16. As the motion is fully briefed, no further briefing will be accepted by the Court. Counsel are ordered to appear via Zoom or in person.

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12. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
***HEARING ON MOTION IN RE: FILE RECORDS UNDER SEAL**
FILED BY: VISTNES, M.D., MICHAEL DEAN
<u>*TENTATIVE RULING:*</u>

See Line 11, above.

13. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
***HEARING ON MOTION IN RE: FILE RECORDS UNDER SEAL**
FILED BY: SKINSPIRIT ESSENTIAL, LLC,
TENTATIVE RULING:

See Line 11, above.

14. 9:00 AM CASE NUMBER: C23-01698
CASE NAME: ZHI HUANG VS. HUTCHINSON MOTORS, INC.
***HEARING ON MOTION IN RE: TO APPROVE PAGA SETTLEMENT**
FILED BY: HUANG, ZHI H
TENTATIVE RULING:
Summary

Plaintiff Zhi Huan' ("Plaintiff") Motion for Approval of the PAGA Settlement is **granted** as set forth below. **No appearance is required at the hearing on April 29, 2026.** This settlement is for the PAGA claim for civil penalties and is not a class settlement and does not release the individual wage claims of affected employees other than Plaintiff.

Background

Plaintiff filed this Motion for Approval PAGA Settlement. Plaintiff exhausted all administrative remedies required to bring the PAGA claims asserted in this action and is authorized to act as a private attorney general with respect to the PAGA claims being released under the terms of the Stipulation of Settlement of PAGA Action and Release of PAGA Claims ("Settlement Agreement"). The California Labor Workforce Development Agency ("LWDA") was provided with notice of the settlement and the motion for approval of the settlement via its online process and no objection has been received to the settlement or the motion from the LWDA.

Plaintiff Zhi H. Huang ("Plaintiff") seeks approval of the Stipulation of Settlement of PAGA Action and Release of PAGA Claims ("Agreement")1, which if approved, would provide valuable monetary relief for approximately 55 "Aggrieved Employees," defined as all individuals who are or previously were employed by Defendant Hutchinson Motors, Inc. ("Defendant") in California at any time between May 3, 2022 to May 3, 2023 ("PAGA Period"). Agreement at §§ I(B); I(S); III(A)(3).

This is only a settlement of the PAGA claim for civil penalties and is **not** a class settlement and **does not** release the individual wage claims, if any, of the affected employees other than Plaintiff herself. Cal. Lab. Code § 2699(g)(1); *Iskanian v. CLS Transportation* (2014); 59 Cal. 4th 348, 381 *ZB, N.A. v. Superior Court*, (2019) 8 Cal. 5th 175, 182 (unpaid wages are not recoverable under PAGA).

The terms of this settlement agreement are as follows:

1. The PAGA Settlement provides for a Gross Settlement Amount in the total sum of $100,000.00, which includes: i) the Net Settlement Amount; ii) Plaintiff's Counsel Award in the amount of $35,826.28, comprised of attorneys' fees in the amount of $33,333.33 and reimbursed litigation expenses in the amount of $2,492.95; and iii) Settlement Administration

Costs of $4,000.2. Awarding Class Counsel attorneys' fees in the amount of $83,333.33 and reimbursement of litigation costs not to exceed $25,000.00;

2. The Net Settlement Amount is the amount remaining from the Gross Settlement Amount after the deduction of the Settlement Administration Costs and Plaintiff's Counsel Award.
3. The Administrator will be Apex Class Action LLC.
4. The sum of any settlement checks not cashed within 180 days, or the extended deadline as provided in the Settlement Agreement, will be transmitted to the State Controller's Unclaimed Property Fund in the name of the Aggrieved Employees who did not cash their checks.

Analyses

Legal Standards

Labor Code § 2699(s) requires the Court to "review and approve any settlement of any civil [PAGA] action filed pursuant to this part. The proposed settlement shall be submitted to the agency at the same time that it is submitted to the court." Further, the Court in *Moniz v. Adecco USA, Inc*. (2021) 72 Cal.App.5th 56, 77 stated that "the trial court must review and approve a PAGA settlement (§ 2699, subd,(l)(2)), and the Supreme Court has in dictum referred to this review as a safeguard." (Citing *Kim v. Reins International California, Inc*. (2020) 9 Cal.5th 73, 88; internal quotations omitted.) "The Supreme Court has also observed that trial court approval ensures that any negotiated resolution is fair to those affected," leading the Court in *Moniz* to determine that "adoption of a standard of review for settlements that prevents fraud, collusion or unfairness, and protects the interests of the public and the LWDA in the enforcement of state labor laws warranted." (*Moniz*, supra, 72 Cal.App.5th at 77; citing *Williams v. Superior Court* (2017) 3 Cal.5th 531, 549; *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1800-1801. In other words, "[i]n review and approval of a proposed settlement under section 2699, subd. (l)(2), a trial court thus must scrutinize whether, in resolving the action, a PAGA plaintiff has adequately represented the state's interests, and hence the public interest." (*Moniz*, supra, 72 Cal.App.5th at 88.) Consistent with the foregoing authorities, the Parties requested the Court to review and approve the settlement of the PAGA claims and the PAGA Payment to be paid as part of the proposed Settlement.

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy.(*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

The Court has reviewed the proposed gross settlement and determines that the settlement amount is fair and reasonable. This determination is based on a review of the estimated penalties for meal period violations, estimated penalties for rest period violations, estimated liability for unreimbursed business expenses, estimated liability for inaccurate wage statements, and a general review of the terms of settlement.

The Court also has reviewed the request for Plaintiff's award of attorney's fees in the amount of $33,333.33, which is one-third of the gross settlement. This amount is fair and reasonable, given it is a discounted award from the original amount sought by counsel and includes expenses up to $15,000.

The moving papers sufficiently establish that the proposed settlement is fair, reasonable, and adequate to justify final approval.

Ruling

The motion is **granted**. The Court will execute and file the Proposed Order lodged on December 10, 2025. Plaintiff's counsel is ordered to serve notice of entry of the Order to all parties on the service list. No appearance is required at the April 29, 2026 hearing.

15. 9:00 AM CASE NUMBER: C23-03089
CASE NAME: DIEGO DEL CASTILLO VS. THE ANCHOR SHACK DIVE AND TRAVEL, LLC
***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT**
FILED BY: JOHNSON, JESSICA
****TENTATIVE RULING:****

Plaintiff Jessica Johnson's Motion for Leave to File First Amended Complaint filed on February 18, 2026 is not opposed and is **granted**. Accordingly, the Court make the following orders:

1. Plaintiff shall prepare and e-file a proposed order conforming to this ruling, attaching a copy of this tentative ruling no later than ten (10) days from the date of the hearing.

2. Plaintiff shall file and serve the proposed First Amended Complaint attached to the Declaration of Counsel Mark Venardi no later than fifteen (15) days from the date of the hearing of this motion and file a proof of service with the Court.

3. Answers are due no later than thirty (30) days from the service.

16. 9:00 AM CASE NUMBER: C24-00719
CASE NAME: EMILY CROSS VS. TARIM HOLDINGS, LLC
***HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT**
FILED BY:
****TENTATIVE RULING:****

The motion to strike and dismiss the First Amended Complaint (FAC), filed by Qasim Tarin specially appearing, is **denied**.

Background

On April 2, 2024, Plaintiff Emily Louise Cross, in pro per, filed a signed complaint for Wrongful Eviction naming "Qasim Tarim" as defendant. The complaint alleges that on April 14, 2023, Plaintiff was locked out of a commercial building located at 505 W. 2nd Street, Antioch, California, and refers in its body to "the owner Qasim Tarim." The complaint bears case number C24-00719 on its first page.

On December 26, 2024, Qasim Tarin, specially appearing through counsel Hoge, Fenton, Jones & Appel, filed a motion to quash service of summons. The motion was unopposed and came on for hearing on April 16, 2025. On April 17, 2025, the Court signed an order granting the motion and quashing service; the order was filed on April 18, 2025. The caption of the order identifies the defendant as "Qasim Tarim"; the attorney designation identifies counsel as "Attorneys for Qasim Tarin, Specially Appearing." On April 18, 2025, Plaintiff filed an unopposed motion for relief under Code of Civil Procedure section 473(b), on the ground that she had never been served with the motion to quash. On July 30, 2025, the Court granted Plaintiff's motion for relief, vacated the order quashing service, ordered Plaintiff to arrange for personal service of the summons and complaint on Qasim Tarin no later than 30 days from the date of the order, gave Plaintiff leave to amend the complaint, and memorialized the parties' agreement that service of “documents" going forward would be made by email to defense counsel Rob Keitamo.

On August 11, 2025, plaintiff electronically filed the FAC. The caption of the FAC names a single defendant: "Tarim Holdings, LLC." The first page does not contain the case number, and the pleading does not contain a handwritten signature; it was electronically filed through the Court's e-filing system and bears the clerk's electronic file stamp reflecting case number C24-00719. No new summons was issued on the FAC.

On October 23, 2025, Andrew C. McClelland of the Hoge, Fenton firm sent plaintiff a letter stating that "my office represents Defendant Qasim Tarin in this matter," advising that the prior handling attorney Rob Keitamo no longer worked for the firm and requesting that Plaintiff "comply with the Court's order and serve the First Amended Complaint as well as an issued Summons containing the name of the party listed in your First Amended Complaint by Friday, October 31, 2025. My office is willing to accept e-mail service of these documents. If we do not receive that paperwork by the specified date, we will take appropriate actions to have your Complaint dismissed with prejudice." On November 19, 2025, Mr. McClelland extended Plaintiff’s deadline to November 21, 2025. On November 21, 2025, Plaintiff served the FAC on counsel electronically, without a summons.

On December 29, 2025, Qasim Tarin filed the present Motion to Strike and Dismiss the FAC, supported by his own declaration and that of Attorney McClelland. The attorney designation on each of the moving papers states: "Attorneys for Defendant Qasim Tarin, Specially Appearing." Mr. Tarin's declaration states that he is "not in any way affiliated with or aware of any business known as 'Tarim Holdings, LLC,'" that he is "a member of a business entity known as Tarin Holdings LLC," and that Tarin Holdings LLC "has not retained" moving counsel. In paragraph 1 of his declaration, Mr. McClelland states that Hoge, Fenton is counsel of record for “Tarim Holdings, LLC" and "has not been retained to represent Tarin Holdings LLC."

The motion seeks to strike the FAC and dismiss the action with prejudice on three grounds: (1) the FAC is unsigned in violation of Code of Civil Procedure section 128.7, (2) the FAC fails to include the case number as required by California Rule of Court 2.111(5), and (3) the FAC improperly substitutes a new defendant, "Tarim Holdings, LLC," for Qasim Tarin without leave of court, without issuance of a new summons, and without proper service within the time specified in the Court's July 30, 2025 order.

On December 30, 2025, plaintiff filed an opposition. She argues (1) the FAC is deemed signed under California Rule of Court 2.257 because it was electronically filed, (2) electronic service was authorized and defendant had actual notice, (3) she amended in good faith because Attorney Keitamo told her the proper defendant was the LLC instead of Mr. Tarin, and (4) any defects can be cured by further amendment.

Standard

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code. Civ. Proc. § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc. §§ 436(a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

Before filing a motion to strike, the moving party must meet and confer in person, by video conference, or by telephone with the party who filed the pleading to attempt to reach an agreement that would resolve the objections to the pleading. (Code Civ. Proc. § 435.5.) A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike." (Code Civ. Proc., § 435.5, subd. (a)(4).)

Analysis and Orders

The motion is brought by Qasim Tarin, who asserts that he is no longer a party to the case because he is not named in the FAC. A non-party lacks standing to move to strike. (See Code Civ. Proc., § 435, subd. (b)(1) ["Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof . . . ."].)

The motion is **denied** for Mr. Tarin's lack of standing, and the Court does not reach the substantive arguments.

The opening line of the December 26, 2024 motion to quash described Defendant as "named in this action incorrectly as Qasim Tarim." Moving counsel's October 23, 2025 letter acknowledged that the First Amended Complaint names "a different party as the Defendant than the name listed on the original Summons," and directed Plaintiff to serve a summons "containing the name of the party listed in your First Amended Complaint," Tarim Holdings, LLC, together with the FAC, by email on counsel. The letter raised no objection to the named entity and offered to accept email service. Plaintiff served the FAC by email but did not obtain a summons. Paragraph 1 of Attorney McClelland's declaration in support of this motion identifies his firm as counsel of record for Tarim Holdings, LLC, an entity Mr. Tarin's own declaration in support of the motion states does not exist. Mr. Tarin seeks dismissal of the action with prejudice on the ground, among others, that Plaintiff failed to properly serve Tarim Holdings, LLC. That is the very entity counsel had directed her to serve and that his own declaration identifies his firm as representing.

Plaintiff filed a sur-reply on April 22, 2026 without obtaining leave of court. No authority provides for the filing of a sur-reply absent leave of court. (See, e.g., *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765.) The sur-reply argues that Defendant's reply raised new matters not addressed in the moving papers, including claims that Plaintiff was properly served with the motion and had notice of it through a March 12, 2026 hearing. Plaintiff states she was not served with the motion to strike, that the Court informed her of the April 29, 2026 hearing date, and that Defendant failed to meet and confer before filing the motion as required by Code of Civil Procedure section 435.5. Defendant objected to the sur-reply on April 24, 2026, on the ground that no leave was sought or granted and that the arguments either were or could have been raised in Plaintiff's opposition.

In its discretion, the Court has reviewed both filings. The sur-reply does not affect the disposition of the motion, which is denied on standing grounds. The Court declines to strike the sur-reply. Going forward, all parties shall comply with the Code of Civil Procedure and the California Rules of Court. Code of Civil Procedure section 435.5, subdivision (a) requires the moving party, before filing a motion to strike, to meet and confer with the party who filed the pleading. Subdivision (a)(3) requires the moving party to file a declaration with the motion stating either the means by which the parties met and conferred, or that the responding party failed to respond or to meet and confer in good faith. Defendant's moving papers contain no such declaration and reflect no meet-and-confer effort.

The sur-reply identifies the defendant as Tarin Holdings LLC and refers to Qasim Tarin as its agent. The FAC, however, names "Tarim Holdings, LLC." Plaintiff shall have the opportunity to correct this discrepancy in the amendment ordered below.

Accordingly, the Court makes the following, additional orders:

1. On the Court's own motion, Plaintiff is granted leave to file a Second Amended Complaint (SAC) naming the intended defendant in both the SAC and the summons. The SAC may name the LLC, Mr. Tarin individually, or both, as Plaintiff deems appropriate. Plaintiff shall file the SAC and obtain issuance of a summons thereon **no later than May 22, 2026**, and shall contemporaneously serve a copy of the summons and SAC by email on Attorney McClelland or other counsel of record.

2. Moving counsel represents Mr. Tarin, who states that he is a member of Tarin Holdings LLC, and previously offered to accept email service of the FAC. **No later than June 5, 2026**, moving counsel shall notify Plaintiff in writing whether counsel will accept service of the summons and SAC. This requires only a written response and does not order counsel or any party to accept service.

3. If there is no agreement to accept service, Plaintiff shall serve the summons and SAC on defendant/s in the manner required by law, and file proof of service with the Court, **no later than July 6, 2026.**

4. A further case management conference is set for **July 23, 2026 at 8:30 a.m. in Department 16.** The case management statements shall advise the Court of the status of service.

17. 9:00 AM CASE NUMBER: C24-01654
CASE NAME: MARIA ROSILLO VS. ANTIOCH DUNES HEALTHCARE, LLC, A LIMITED LIABILITY COMPANY
***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM**
FILED BY: ROSILLO, MARIA ISALIA MONCADA

TENTATIVE RULING:*

Summary

Plaintiff Mari Isalia Mondada Rosillo ("Plaintiff") Motion for Final Approval and Judgment of Class Action Settlement with Defendant Antioch Dunes Healthcare, LLC ("Defendant") is **granted** as set forth below. **No appearance is required at the hearing on April 29, 2026.**

Background

This is a wage and hour class action and representative action for alleged Labor Code violations and claims for civil penalties pursuant to the California Private Attorneys General Act, Labor Code sections 2698, et seq. ("PAGA"). Plaintiff Maria Isalia Moncada Rosillo ("Plaintiff") seeks final approval of a proposed $300,000.00 non-reversionary settlement with Defendant Antioch Dunes Healthcare, LLC. ("Defendant") (together with Plaintiff, the "Parties").

The proposed Settlement will provide substantial monetary payments to 2231 Class Members, consisting of any person who worked for Defendant in California as an hourly, non-exempt employee at any time during the period from June 25, 2020, through June 11, 2025 (the "Class Period"), and did not sign an arbitration agreement. As set forth more fully below, Plaintiff represents that the proposed Settlement satisfies all criteria for approval under California law. Plaintiff contends that the Settlement was reached after extensive investigation, discovery, and arm's-length negotiations. Thus, the Settlement is fair, reasonable, and adequate and is in the best interests of the Class.

The Motion seeks an order:

1. Certifying a Class, for settlement purposes only;
2. Approving the Settlement as fair, reasonable, and adequate as to Class Members;
3. Finding Class Members were given, in a reasonable manner under the circumstances, due and adequate notice of the proposed Settlement and advised of their right to participate in, object to, or exclude themselves from the Settlement;
4. Directing consummation of the terms and provisions of the Settlement;
5. Confirming the appointment of Plaintiff as the Class Representative, for settlement purposes only, and approving a service award in the amount of $7,500.00, in addition to the amount she is eligible to receive as a Class Member, in recognition for her role and service as the Class Representative, for the risks and work attendant to that role, and for her general release of claims;
6. Confirming the appointment of Class Counsel Moon Law Group, PC, as Class Counsel, for settlement purposes only, and approving a payment of $100,000.00 for reasonable attorneys' fees and $24,029.32 for reimbursement of litigation costs actually incurred;
7. Confirming the appointment of ILYM Group, Inc. as the Administrator, finding the Administrator fulfilled its initial notice and reporting duties under the Settlement, and approving a payment of $5,000.00 for the costs of administration;
8. Approving payment of $6,500.00 to the California Labor and Workforce Development Agency and $3,500.00 to the Aggrieved Employees in settlement and release of claims for civil penalties under PAGA, and barring further claims for the Released PAGA Claims notwithstanding the submission of any Request for Exclusion from the Settlement;

9. Pursuant to California Code of Civil Procedure section 384, following the expiration of the 180-day check-cashing deadline, should there be any uncashed checks, directing the Administrator to transmit the funds represented by any uncashed or undeliverable checks to the California State Controlled Unclaimed Property Fund;
10. Directing the clerk of the Court to enter Judgment;
11. Directing the Administrator to provide notice of Judgment to Class Members by posting an electronic copy on a website maintained by the Administrator for no less than ninety (90) calendar days following entry thereof; and
12. The Parties agree that, after entry of Judgment, the Court will retain jurisdiction over the Parties, Action, and the Settlement solely for purposes of (i) enforcing the Settlement and/or Judgment, (ii) addressing settlement administration matters, and (iii) addressing such post-Judgment matters as are permitted by law.

Analyses

Legal Standards

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement."

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. The Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provides guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id*., at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy.(*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Key Terms of the Proposed Settlement

Under the Settlement, Defendant will pay a non-reversionary, all-inclusive amount of no less than $300,000.00 to resolve this action. (Settlement, ¶¶ 1.21, 3.1.) The key terms include:

1. Class Members and Class Period: The proposed Class contains 223 members who cumulatively worked 7,126 Workweeks and is defined as any person who worked for Defendant in California as an hourly, non-exempt employee at any time during the Class Period, and did not sign an arbitration agreement. (Id. at ¶ 1.5; Admin Decl., ¶ 5.) The "Class Period" is June 25, 2020, through June 11, 2025. (Settlement, ¶ 1.12.)
2. Aggrieved Employees and PAGA Period: The Class contains 236 Aggrieved Employees who worked 5,226 PAGA Pay Periods during the PAGA Period. (Admin Decl., ¶ 5.) "Aggrieved Employee" is defined as any person who worked for Defendant in California as an hourly, non-exempt employee at any time during the PAGA Period. (Settlement, ¶ 1.4.) The "PAGA Period" is June 22, 2023, through June 11, 2025. (Id. at ¶ 1.31.)
3. Non-reversionary Gross Settlement Amount: This amount is $300,000.00 and excludes Defendant's employer's share of payroll taxes. (Settlement, ¶ 3.1.) No portion will revert to Defendant. (Id. at ¶ 3.1.)
4. Escalator Clause: Following preliminary approval, the Administrator processed the Class Data and determined Class Members cumulatively worked 7,126 Workweeks, which is below the escalator threshold of 7,210 Workweeks. (Settlement, ¶ 8; Admin Decl., ¶ 5.) Accordingly, the Escalator Clause was not triggered.
5. Net Settlement Amount: The total amount of money available for payout and distribution to Participating Class Members in Individual Class Payments, which is the Gross Settlement Amount less the following payments, in amounts as finally approved by the Court: (i) the Class Representative Service Payment of up to $7,500.00 to Plaintiff; (ii) Administration Expenses Payment of up to $5,000.00; (iii) PAGA Penalties in the amount of $10,000.00, which will be distributed as 65% ($6,500.00) to the LWDA and 35% ($3,500.00) to Aggrieved Employees; (iv) the Class Counsel Fees Payment of not more 33.33% of the Gross Settlement Amount (currently estimated to be $100,000.00); and (v) and the Class Counsel Litigation Expenses Payment of up to $25,000.00. (Id. at ¶¶ 1.28, 3.2.1-3.2.5.) In the event the amounts finally approved are less, the remainder will revert to Participating Class Members. (Id. at ¶¶ 3.2.1-3.2.5.2.) At this time, Class Counsel have incurred $24,029.32 in total costs. (Moon Decl., ¶ 14, Exh. 4.)
6. Administrator and Costs: The Parties jointly appointed ILYM Group, Inc. as the neutral entity to administer this Settlement. (Id. at ¶ 1.2, 7.1.) The Administrator's final costs are $5,000.00. (Admin Decl., ¶ 17.)
7. Individual Class Payment: Participating Class Members will receive a pro rata share of the Net Settlement Amount calculated according to the number of Workweeks worked during the Class Period. (Settlement, ¶ 1.23.) "Workweek" means any week during which a Class Member worked for Defendant for at least one day, during the Class Period. (Id. at ¶ 1.45.)
8. Individual PAGA Payment: Aggrieved Employees will receive a pro rata share of 35% of the PAGA Penalties calculated according to the number of PAGA Pay Periods worked during the PAGA Period. (Id. at ¶ 1.24.) "PAGA Pay Period" means any Pay Period during which an Aggrieved Employee worked for Defendant for at least one day during the PAGA Period. (Id. at ¶ 1.30.)
9. There are other key terms, which form part of the proposed settlement, which the Court has reviewed, but feels is not necessary to repeat here in this tentative ruling.

Plaintiff seeks one-third (33.3%) of the total settlement amount as fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme

Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.*, at 505.) Following typical practice, however, consideration of the fee award was deferred to the motion for final approval.

Counsel provides an estimated lodestar fee of $85,157.59. This is based on a total of 111.5 hours, with hourly rates ranging from $600-950.00. The amount of fees billed exceed the amount requested. No adjustment is necessary. The Court finds that $100,000 for class counsel fees are reasonable and approved. Litigation costs of $24,029.32 are reasonable and are approved. The Court finds that the amount of $5,000 to ILYM for its settlement administration expenses is reasonable. The Court finds that Class Representative Service payment of $7,500 is reasonable and is approved. The proposed payment to LWDA of $6,500 is reasonable and approved. The PAGA Allocation to Aggrieved Employees in the amount of $3,500 is reasonable and approved.

The Court finds that the moving papers sufficiently establish that the proposed settlement is fair, reasonable, and adequate to justify final approval. Notice to the class was adequately provided.

Ruling

1. The motion is **granted**. The Court will execute the proposed order lodged on April 7, 2026. The Court sets a compliance hearing dates regarding distribution as set forth in the proposed order.
2. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date, which shall be set by the Clerk of the Court in due course (not later than ninety (90) days from the date of this hearing). Five percent (5%) of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
3. No appearance is required at the hearing on March 4, 2026.

18. 9:00 AM CASE NUMBER: C25-01464
CASE NAME: THREEZ INVESTMENTS, INC. VS. AMAN POHYAR
***HEARING ON MOTION IN RE: TO DISMISS PLAINTIFF'S COMPLAINT**
FILED BY: POHYAR, AMAN
TENTATIVE RULING:*

Defendant Aman Pohyar's Motion to Dismiss is **denied**.

Background

Plaintiff Threez Investments, Inc. (Threez) filed this action against Defendant Aman Pohyar (Pohyar) arising from the purchase and sale of a single-family home at 8053 Kelok Way in Clayton.

In 2017, the property was listed on the MLS for $199,500. The public remarks on the listing said the house was "not in livable condition per the City of Clayton" and that soil movement in the area needed to be corrected. On July 31, 2017, the City of Clayton issued a "red tag" notice declaring the house uninhabitable because it is located on the top of a "slow-moving landslide" affecting the front and side yards and the public street. In October 2017, Pohyar bought the property for $250,000. (See Complaint filed on May 27, 2025, ¶¶ 7-9.)

In September 2023, Pohyar contracted to sell the property to Adelko, Inc. for $850,000. Paragraph 6 of that contract warranted that the "Seller is not aware of any unrecorded liens, leases, or other encumbrances affecting the Property." On or about October 16, 2023, Adelko assigned the contract to Threez, which ended up purchasing the property for $855,000. Before closing, Threez was told that the property needed about $56,000 in foundation repairs but not that the house had been red-tagged or declared uninhabitable. After closing, Threez's experts concluded that multiple underground piers were needed to stabilize the soil, at a cost over $800,000. (Complaint, ¶¶ 10-14.)

When confronted, Pohyar allegedly said the red tag was "fake and fraud" committed by a city engineer trying to scare off buyers so the engineer could buy the property himself. Threez uses that statement to argue Pohyar knew about the red tag. Threez also points to the $600,000 difference between Pohyar's 2017 purchase price and the 2023 sale price as circumstantial evidence that Pohyar knew the property was distressed when he bought and sold it. On March 26, 2025, Threez sent Pohyar a demand for rescission. (Complaint, ¶¶ 14, 59, Exh. 6.)

Threez pleads six causes of action against Pohyar: (1) intentional misrepresentation; (2) negligent misrepresentation; (3) negligence; (4) non-disclosure; (5) rescission based on fraud; and (6) declaratory relief. The fraud theory is that Pohyar knew the property had been red-tagged as uninhabitable due to soil movement, warranted in Paragraph 6 of the sales contract that he was unaware of any “encumbrances,” and concealed the red tag to induce Threez to buy the property for significantly more than it was worth.

Pohyar filed the instant "Motion to Dismiss the Plaintiffs' Complaint…" on December 12, 2025, in pro per. Threez opposed on March 10, 2026. Pohyar replied on April 7, 2026.

Legal Standard

In California, a motion to dismiss is treated as a general demurrer. (*Citizens for Parental Rights v. San Mateo Cty. Bd. of Educ.* (1975) 51 Cal. App. 3d 1, 38 ["The motion to dismiss is, as we have noted, the legal equivalent of a general demurrer."]; *ZL Techs., Inc. v. Does 1-7* (2017) 13 Cal. App. 5th 603, 613 n.4 ["In California, a demurrer serves the purpose of a motion to dismiss."].)

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).)

Demurrers for uncertainty are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. (*Mahan v. Charles W. Chan Insurance Agency, Inc*. (2017) 14 Cal.App.5th 841, 848.) However, "[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Analysis

Pohyar contends he bought the property in 2017 after seeing no major damage and only learned of the red tag after closing, when the City of Clayton's contracted engineer, Scott Almond, handed him a one-page flyer Pohyar claims was fake: unsigned, unstamped, with no underlying city record of who discovered the damage or when. He alleges the engineer demanded $10,000 to "review" the matter and was fired within 15 days after Pohyar complained to the Mayor. Pohyar's engineers found only a three-inch settlement in the front of the living room caused by poor drainage, not a landslide. He spent roughly $285,000 over six years maintaining the property. When he sold in 2023, his buyer was Adelko, Inc., not Threez, and he gave Adelko all his engineering and soil reports along with a copy of the city's red tag notice during negotiations. The sale was “as is” for $825,000. Pohyar points to the IRS Form 1099-S, noting other documents inconsistently show $850,000 or $855,000. He says he never dealt with Threez, did not know Threez existed until receiving the demand letter two years later, and that any failure to pass disclosures along to Threez is between Threez and Adelko. He argues the complaint is uncertain and fails to state a cause of action.

Threez responds that the motion is procedurally deficient because a demurrer must be filed within 30 days of service, but Pohyar was served on June 7, 2025, answered on June 23, 2025, and did not file this motion until December 12, 2025. Threez adds that Pohyar also failed to meet and confer as required by statute. On the merits, Threez argues the motion improperly relies on disputed facts outside the pleadings, including Pohyar's claims that the red tag is fake and that he gave Adelko all the reports. Threez argues the complaint adequately pleads fraud and concealment because California imposes both common law and statutory duties on sellers to disclose material facts affecting the value or desirability of real property, and the red tag and habitability issues are material as a matter of law. Threez argues the “as is” sale does not shield Pohyar from liability for fraud, and Pohyar's misrepresentations were made with the intent to induce reliance by subsequent purchasers like Threez.

Pohyar's reply asserts for the first time that he recently saw a real estate advertisement showing the property was resold for $1,337,767, which shows that Threez made a substantial profit and brought this case to harass Pohyar.

As an initial matter, Pohyar’s argument that the complaint is uncertain, ambiguous, or unintelligible is not supported. The complaint identifies the parties, the property, the contract, the alleged fraud, and the alleged damages. Pohyar answered the complaint and filed this motion, which shows he understood the allegations well enough to respond.

The motion also fails for three reasons. First, it is untimely as a demurrer. A demurrer must be filed within 30 days of service. (Code Civ. Proc., § 430.40.) Pohyar was served on June 7, 2025, and answered on June 23, 2025. He did not file this motion until December 12, 2025. The Court nonetheless addresses the merits because the same argument can be raised as a nonstatutory motion for judgment on the pleadings. Second, Pohyar treats this motion as if the Court were weighing evidence. That is not the purpose of a demurrer. The Court does not decide factual disputes at this stage and accepts the allegations in the complaint as true. Third, the complaint alleges facts that, if taken as true, are enough to support each cause of action, as explained below.

Misrepresentation (First and Second Causes of Action)

The elements of intentional misrepresentation are (1) a misrepresentation, (2) with knowledge of its falsity, (3) with intent to induce reliance, (4) actual and justifiable reliance, and (5) resulting damage. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1166.) The elements of negligent misrepresentation are nearly identical, with the second element requiring the absence of reasonable grounds for believing the representation true instead of knowledge of its falsity. (*Id*.)

The first cause of action pleads each element. The complaint alleges Pohyar represented in Paragraph 6 of the September 2023 sales contract that he was not aware of any unrecorded liens, leases, or other encumbrances affecting the property. The complaint alleges Pohyar knew that representation was false because he later told Threez the red tag was "fake and fraud" committed by a city engineer, which shows he knew the red tag existed. The complaint alleges Pohyar made the representation to induce Threez to enter into the purchase agreement and close escrow at a price significantly above fair market value. The complaint alleges Threez was ignorant of the falsity, relied on the representation, and that reliance was reasonable given Pohyar's superior knowledge of the property. The complaint alleges damages over $855,000 plus remediation costs exceeding $800,000.

The second cause of action pleads the same facts and adequately alleges that Pohyar lacked reasonable grounds for believing his statements to be true. The complaint alleges Pohyar made the Paragraph 6 representation negligently or recklessly without regard for its truth. Given the public 2017 MLS listing flagging the property as uninhabitable, the red tag, and Pohyar's ownership of the property since 2017, the complaint adequately alleges he had no reasonable basis to claim ignorance of facts affecting habitability.

As noted earlier, a demurrer is not the stage at which the Court weighs competing evidence. The Court accepts the allegations of the complaint as true and cannot consider Pohyar's claims about what he disclosed, whether the red tag was genuine, or any other factual disputes outside the pleading.

Pohyar also argues the "as is" nature of the sale bars liability. The Court can take judicial notice of the purchase and sale agreement, including its "as is" language, but that provision does not assist him at this stage. "As is" language in a real estate sales contract does not shield a seller or his agent from liability for fraud. "Generally speaking, such a provision means that the buyer takes the property in the condition visible to or observable by him. [Citation.] Where the seller actively misrepresents the then condition of the property [citations] or fails to disclose the true facts of its condition not within the buyer's reach and affecting the value or desirability of the property, an 'as is' provision is ineffective to relieve the seller of either his 'affirmative' or 'negative' fraud…. To enlarge the meaning of such a provision so as to make it operative against all charges of fraud would be to permit the seller to contract against his own fraud contrary to … law. (Civ. Code, § 1668.)" (*Lingsch v. Savage* (1963)

213 Cal.App.2d 729, 742.)

Here, given the allegations that Pohyar failed to disclose the red tag and the soil movement that made the property uninhabitable, and that Threez did not know and could not reasonably have discovered those conditions, the Court rejects the argument that the "as is" provision defeats the claims.

Pohyar also argues he cannot be liable because he sold the property to Adelko rather than directly to Threez. The complaint alleges that Adelko assigned the purchase contract to Threez, and that Pohyar's representations and omissions were intended to induce reliance by subsequent purchasers, including Threez. That is sufficient at the pleading stage.

Negligence and Non-Disclosure (Third and Fourth Causes of Action)

A real estate seller has both a common law and statutory duty of disclosure. The court in *Shapiro v. Sutherland* (1998) 64 Cal.App.4th 1534, 1544, outlined the common law duty, explaining: "In the context of a real estate transaction, '[i]t is now settled in California that where the seller knows of facts materially affecting the value or desirability of the property … and also knows that such facts are not known to, or within the reach of the diligent attention and observation of the buyer, the seller is under a duty to disclose them to the buyer. [Citations.]' [Citations.] Undisclosed facts are material if they would have a significant and measurable effect on market value. [Citation.]" A seller's duty of disclosure is limited to material facts; once the essential facts are disclosed a seller is not under a duty to provide details that would merely serve to elaborate on the disclosed facts. (*Pagano v. Krohn* (1997) 60 Cal.App.4th 1, 8-9.) Where a seller fails to disclose a material fact, he may be subject to liability "for mere nondisclosure since his conduct in the transaction amounts to a representation of the nonexistence of the facts which he has failed to disclose [citation]." (*Lingsch v. Savage*, *supra*, 213 Cal.App.2d at 736.)

The third and fourth causes of action rest on the same facts. Both allege Pohyar owed a duty to disclose material facts about the property, breached that duty by failing to disclose the red tag and soil movement, and caused damages.

The complaint adequately pleads each element. The complaint alleges Pohyar knew the property had been red tagged and suffered from soil movement, that he did not disclose those facts to Threez, that Threez did not know and could not reasonably have discovered them, that Pohyar knew Threez did not know, that the conditions affected the value of the property, and that Threez was harmed as a result. Pohyar's contrary factual assertions cannot be considered on demurrer.

Rescission and Declaratory Relief (Fifth and Sixth Causes of Action)

Rescission is a remedy governed by Civil Code § 1689, which allows rescission for mistake, duress, fraud, undue influence, failure of consideration, void consideration, illegality, and public interest. (*Wong v. Stoler* (2015) 237 Cal.App.4th 1375, 1385.) Threez seeks rescission based on fraud. The complaint alleges Pohyar represented in Paragraph 6 of the sales contract that he was unaware of any encumbrances, that the representation was knowingly false because Pohyar knew the property had been red tagged and suffered from soil movement, that the representation induced Threez to purchase the property well above fair market value, that Threez justifiably relied to its detriment, and that Threez gave notice of rescission on March 26, 2025. These allegations support rescission.

To qualify for declaratory relief, a party must allege (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party's rights or obligations. (Code Civ. Proc. § 1060; *Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, 909.) The complaint alleges an actual controversy between Threez and Pohyar concerning their respective rights and duties under the purchase agreement and the property and seeks a judicial declaration of those rights and duties.

19. 9:00 AM CASE NUMBER: C25-02227
CASE NAME: EMMA WILLS VS. LYONS MAGNUS LLC
***HEARING ON MOTION IN RE: TO APPEAR AS COUNSEL PRO HAC VICE FILED RE: WILLIAM D. MARLER**
FILED BY: WILLS, EMMA
****TENTATIVE RULING:****

The hearing on this motion is **vacated**. On April 16, 2026, Plaintiff filed a Request for Dismissal of the entire action with prejudice. No appearance is required on April 29, 2026.

20. 9:00 AM CASE NUMBER: C25-03523
CASE NAME: VILSON MANUSYANTS VS. MERCEDES-BENZ USA, LLC,
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: MERCEDES-BENZ USA, LLC,
****TENTATIVE RULING:****
Defendant Mercedes-Benz USA, LLC's Motion to Compel Binding Arbitration and Motion to Stay filed on January 5, 2026 is unopposed by Plaintiff Vilson Manusyants. Accordingly, the Motion is **granted**. This matter is stayed pending arbitration. The Court will execute the proposed order lodged on January 5, 2026. No appearance is necessary at the April 29, 2026 hearing. The Court sets a Case Management Conference for October 29, 2026 at 8:30 a.m. to follow-up on the status of arbitration. The Parties are ordered to file a case management conference statement advising the Court of the result of the arbitration. The parties may stipulate to continue this CMC if the arbitration proceedings have not concluded prior to October 29, 2026.

21. 9:00 AM CASE NUMBER: MSC19-01155
CASE NAME: JOANN BRADFORD VS. CHEVRON U.S.A. INC.
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY:
****TENTATIVE RULING:****
Summary

Plaintiffs Joann Bradford, Liza Mosqueriola and Jason Rohrback ("Plaintiffs") move for preliminary approval of their class action and PAGA settlement with Defendant Liberty Chevron USA Inc. ("Defendant"). This Motion is **granted** as set forth herein. No appearance is required at the hearing on April 29, 2026.

Background and Settlement Terms

Plaintiffs seek preliminary approval of a $1,750,000 settlement of state wage and hour claims on behalf of a proposed class of approximately 550 current and former Operators who worked for Defendant at its Oil Refinery in Richmond, California. The class claims arise out of the core allegation that Defendant violated California's provision mandating reporting time pay by scheduling Operators for standby shifts for which they were not paid wages unless called to report to work at the refinery. Plaintiffs also aver a related claim for penalties under California's Private Attorneys General Act ("PAGA"). The Stipulation of Settlement and Release ("Settlement Agreement" or "SA"), if approved, will provide substantial relief to all members of the certified class of Operators and a reasonable payment to resolve the PAGA penalties claim. See Declaration of Aaron Kaufmann ISO Plaintiffs' Motion for Preliminary Approval of Class Action Settlement ("Kaufmann Decl.") Ex. 1 (Settlement Agreement). In addition to the payment of the settlement amount, Chevron reformed the challenged policy as of May 31, 2022 and has been paying Operators for standby shifts for nearly four years. See Declaration of Alexander Nazarov ISO Plaintiffs' Motion for Preliminary Approval of Class Action Settlement ("Nazarov Decl.") ¶ 4.

The Gross Settlement Amount, $1,750,000, contemplated under the terms of the Settlement Agreement represents approximately 44.8 percent (44.8%) of the aggregate reporting time pay incurred by the certified class and approximately 26.7 percent (26.7%) recovery on the maximum value of the class claims, exclusive of Plaintiffs' attorneys' fees.

The proposed settlement would cover the class of individuals employed by Defendant at the oil refinery in Richmond, California who were assigned unpaid standby shifts between November 26, 2019 through May 30, 2022.

The class members are projected to receive a pro rata share of approximately $838,166.67, which is the Net Settlement Amount ("Class Fund" in the Settlement Agreement) after the Gross Settlement Amount of $1,750,000 is reduced by payments to the California Labor & Workforce Development Agency ("LWDA") to resolve the PAGA penalty claims, attorneys' fees and costs, Class Representative service awards, and settlement administration fees. SA, ¶¶ II.B.3, D.3, F.1; Kaufmann Decl. ¶ 9. The Net Settlement Amount will then be disbursed as Individual Settlement Shares to Class Members based on the number of workweeks each was employed during the Class Period, as reflected in Defendant's records. SA, ¶ II.D.3. These settlement shares will represent compensation for each Class Member's potential accrued reporting time pay and interest thereon, waiting time penalties under Labor Code section 203, penalties for pay statement violations under Labor Code section 226, and their share of PAGA penalties. The parties have agreed that 40 percent (40%) of the settlement shares to Class Members is attributable to wage claims and sixty percent (60%) attributable to interest and statutory penalties.

The parties have agreed to allocate $25,000 to resolve the PAGA penalty claim. SA, ¶ II.B.16, E.3. In accordance with the PAGA, Labor Code section 2699(i), Defendant will pay the LWDA $18,750 (75 percent of a $25,000 PAGA penalty allocation). II.E.3. The parties will provide a copy of the Settlement Agreement to the LWDA contemporaneously with the filing of this motion. See Cal. Labor Code § 2699(1)(2)

The Settlement Agreement permits Class Counsel to apply for an award of attorneys' fees and costs in an amount up to $533,333.33 (one-third of the Gross Settlement Amount), SA, ¶ II.D.4. which is approximately just 16.4 percent (16.4%) of their collective lodestar as of December 31, 2025. Kaufmann Decl. ¶ 14; Nazarov Decl. ¶ 6. In addition, Class Counsel may seek reimbursement of up to $270,000 for out-of-pocket expenses paid to directly advance the subject litigation.

The Settlement provides that the three Plaintiffs may petition the Court for class representative service awards of up to $10,000 each, representing $30,000 in the aggregate. SA, ¶ II.D.6. This is in addition to any distribution to which they may otherwise be entitled to as Class Members. These amounts are to compensate the Plaintiffs for (1) the significant time and effort they have spent on behalf of the Class, including assisting in the investigation, participating in extensive discovery, consulting with counsel regarding all aspects of the litigation and settlement, and conferring on the settlement, and (2) the risk incurred by suing a current of former employer, a fact that is easily obtainable through the Court's records.

The Court has reviewed the proposal to retain CPT Group, Inc. to serve as settlement administrator and has reviewed the proposed distribution plan.

<u>Analyses</u>

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC,* supra, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc*. (2021) 72 Cal.App.5th 56, provided guidance on this issue. In Moniz, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (Id., at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (Id., at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; Timney v. Lin (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that Neary does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

<u>Attorney fees</u>

The Settlement Agreement provides that Class Counsel may petition the Court for an award of fees not to exceed one-third of the Gross Settlement Amount as their Class Counsel Fees Payment, or $583,333.33 in addition to litigation expenses up $270,000. Essentially, Class Counsel seeks one-third of the total settlement amount as fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International (*2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (Id., at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval. Counsel are directed to prepare a lodestar fee estimate for the motion for final approval.

The reasonableness of litigation costs and the settlement administrator's fees will be considered at final approval. Similarly, the requested representative payment of $10,000, each, for the named Plaintiffs will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

After reviewing the foregoing, and applying the relevant statutory and decisional authorities, the Court finds good cause to grant the motion for preliminary approval.

Ruling

Good cause, therefore appearing, the Court finds, orders and rules as follows:

(1) The Court **grants** the Motion for Preliminary Approval of Class Action Settlement and the settlement agreement, attached as Exhibit 1 to the accompanying Declaration of Aaron Kaufmann in support of Plaintiffs' Motion for Preliminary Approval of Class Action Settlement ("Settlement Agreement");
(2) The Court approves the proposed Notice of Class Action Settlement;
(3) The Court appoints CPT Group as Settlement Administrator;
(4) The Court setting a deadline for Plaintiffs to file a motion for final approval, including a request for approval of attorneys' fees and litigation expenses, class representatives' service awards and the PAGA Settlement. That deadline is 180 days from the date of this order, subject to extension by stipulation and proposed order.
(5) The Court orders the Plaintiffs to file Motion for Final approval of the Settlement Agreement, approval of the PAGA Settlement incorporated in the Settlement Agreement, and approval of attorneys' fees, litigation expenses, and class representative service awards no later than 180 days from the date of this order, subject to extension by stipulation and proposed order.

(6) Subject to foregoing, the Court will execute the proposed order lodged by Plaintiffs on March 4, 2026. Counsel is ordered to serve notice of entry of the order to the service list.

Discovery Law & Motion

22. 9:01 AM CASE NUMBER: C25-01464
CASE NAME: THREEZ INVESTMENTS, INC. VS. AMAN POHYAR
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DISCOVERY**
FILED BY: THREEZ INVESTMENTS, INC.
<u>*TENTATIVE RULING:*</u>
<u>Summary</u>:

Plaintiff Threez Investments, Inc's ("Plaintiff") Motion to Compel Further Responses to Discovery and for Monetary Sanctions to be imposed on Defendant is **<u>unopposed</u>**, and is therefore, **<u>granted</u>**. Plaintiff filed a Motion to Compel Further Responses to Discovery on Defendant Aman Pohyar ("Defendant") on February 5, 2026. The Motion was supported by Notice, Amended Notice, Memorandum of Points and Authorities and Declaration of Counsel Mu. No timely responses to this Motion was filed by Defendant. No appearance is required at the hearing on April 29, 2026.

<u>Analyses</u>

The Court is aware that Defendant is proceeding without an attorney in his lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "'[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in propria persona litigant is not inadvertently misled, either by the represented party or by the court. … [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.'" *Petrosyan v. Prince Corp*. (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Defendant was misled by the Court or by Plaintiff. Indeed, the declaration filed by Plaintiff's Counsel indicate that she took reasonable steps to meet and confer with Defendant regarding his obligation to provide further responses to discovery and was aware of the deadlines, and did not serve further responses. He also did not oppose this Motion.

<u>Plaintiff's Failure to File Opposition is Deemed to be Consent to the Motion</u>

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc*. (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779,784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure to timely oppose this Motion is a deemed to be Plaintiff's consent to the granting this Motion.

After reviewing the moving papers and considering the applicable statutory and decisional authority, the Court finds good cause to grant Plaintiff Threez Investments, Inc's Motion to Compel Further Responses to Discovery and for Monetary Sanctions to be imposed on Defendant.

Ruling

1. Plaintiff Threez Investments, Inc's ("Plaintiff") Motion to Compel Further Responses to Discovery and for Monetary Sanctions in the amount of $3,750.00 to be imposed on Defendant is **granted**.

2. The Court will execute the proposed order lodged on February 5, 2026 and the clerk of the Court will attach this tentative ruling and file the order. Plaintiff's Counsel shall serve a Notice of Entry of Order to Defendant.

3. No appearance is required at the hearing on April 29, 2026.

23. 9:01 AM CASE NUMBER: C22-01897
CASE NAME: AMANDA GALLAGHER VS. ESSEX PROPERTY TRUST INC, A MARYLAND CORPORATION
***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO PLTFS DISCOVERY REQUESTS**
FILED BY: GALLAGHER, AMANDA
****TENTATIVE RULING:****

Summary

Plaintiffs Amanda and Shane Gallagher's ("Plaintiffs") Motion to Compel Responses to Plaintiff's Discovery Requests and for Admissions to be Deemed Admitted from Defendant Essex Property Trust, Inc. ("Defendant") is **granted**. Sanctions requested by both parties are **denied**.

Background

This case involves a dispute between Plaintiffs who are tenants, and Defendant, who is an owner of real property leased to Plaintiffs. The causes of action allege breach of the covenant of quiet enjoyment, habitability, retaliation, negligence, and unfair business practices.

On December 22, 2025, Plaintiffs served upon Defendant Request for Production of Documents, Set two, Form Interrogatories, Set two, Special Interrogatories, Set Two and a Request for Admissions, Set Two. Plaintiffs allege that Defendants responses were due on January 21, 2026. Defendant did not respond timely.

Plaintiff filed this Motion to Compel Responses on February 26, 2026, accompanied by Notice, Memorandum of Points and Authorities, Declaration of Counsel Andrew V. Gabriel. Plaintiffs seek sanctions in the amount of $1,290.

On April 16, 2026, Defendant filed an opposition, supported by an 88-page Declaration of Robert D. Bustamante, Memorandum of Points and Authorities, and proposed order. The salient arguments advanced by Counsel Bustamente summarize as follows. Defendant claims that Plaintiffs' counsel had been afforded professional courtesy when provided with generous extensions of time to respond to Defendant's discovery requests when Plaintiff's counsel experienced personal family crises. However, he was not shown equal treatment and requests that this court grant him equitable relief in denying Plaintiffs' Motion.

Counsel Bustamonte explains further that Plaintiffs' discovery were not properly served. Specifically, Plaintiffs "failed to utilize out firm's designated and required services list" (Bustamante, Declaration para. 3)… and did not include the firm's case manager. Accordingly, Defendant maintains that Plaintiff failed to provide valid notice. Defendant also claims that co-counsel experienced unforeseen illness and medical crises requiring reallocation of law firm resources. Under these circumstances, although Defendants did not provide any response to discovery, this motion should be denied.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra,* 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor*

& Gamble Co., (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Here, Plaintiffs propounded discovery to Defendant in the form of interrogatories, a request for production of documents and a request for admission. Defendant's counsel claims that he attempted to meet and confer with Plaintiffs' counsel to resolve the discovery dispute. However, *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 411* establishes that there is **no obligation to meet and confer if a party fails to respond at all**. While professional courtesy suggests that it is always good practice to informally resolve discovery disputes before resorting to a motion, the one exception to the statutory requirement to meet and confer is where the other party fails to provide any response to the discovery. Here, Defendant did not timely respond to any discovery propounded by Plaintiffs.

The Court notes some concern that Plaintiffs' Counsel has not reciprocated the same level of professional courtesy that appears to have been extended to his office when he faced the similar circumstance of not responding to discovery served on Plaintiffs. Professional courtesy requires at least some consideration of past efforts. However, the Court also considers the impending trial date and issue conference, and understands that a prolonged meet and confer effort is not likely to produce discovery in time for trial in this four (4) year old case, especially where, as in this case, discovery was served nearly five months ago. Between the filing of this Motion and this hearing, rather than spend energy opposing this Motion, Defendant should have prepared responses.

The Court understands that counsel for Plaintiffs and Defendant have instituted internal protocols for the handling of discovery which require certain office staff are to be served. This requirement appears to be administrative and is not mandated by the California Rules of Court or the Civil Discovery Act. The rules for service simply require that the Parties perform service of discovery pursuant to Cal. Code of Civ. Proc. §§ 1011 and 1013. None of those procedures outline a process for service, other than to serve counsel's office in person, by mail, or by electronic service. The Court is not able to enforce internal protocol for service that appear to impose more requirements than the Code of Civil Procedure. As such, the argument advanced by Defendant's counsel that internal protocol for service were not followed, and, therefore service is defective, is not persuasive to the Court.

Interrogatories

Where a party to whom interrogatories are directed fails to serve timely responses, they "waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product." (Cal. Code of Civ. Proc. (CCP) § 2030.290(a). Moreover, under Section 2030.290(b), "The party propounding the interrogatories may move for an order compelling response to the interrogatories." Where a motion to compel answers is made, Section 2030.290(c) states, "The court **shall** impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

Production or Inspection of Documents

Similarly, CCP § 2031.300(a) states that where a party fails to serve a timely response to requests for production of documents, they waive all objections, including privilege. The requesting party may move to compel responses under CCP § 2031.310(b) and(c), and the court "**shall** impose sanctions [ ].. against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

Request for Admissions

CCP § 2033.280(a) states that where a party fails to serve a timely response to a request for admissions, they waive all objections, including privilege. The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted under CCP § 2033.280(b) and(c), and the court "shall impose sanctions [ ].. against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

After reviewing the papers submitted by Counsel, and applying the applicable statutory and decisional authorities, the Court finds good cause to grant Plaintiffs' motion. The Court, therefore, makes the following orders.

Ruling

1. Plaintiff's Discovery Motions are **granted**. The Court will execute the proposed order lodged by Plaintiff's Counsel on February 26, 2026, with the following modifications: Discovery responses, including documents and items requested, shall be produced, without objections, no later than ten (10) days from the date of service of this order.

2. Plaintiff's request for sanctions is **denied**. The Court finds that Defendant had substantial justification in responding to in-house crises, including the illness of co-counsel, which appears to justify Defendant's mistake, inadvertence and negligence in failing to respond timely to discovery requests. Accordingly, the imposition of sanctions, especially where Plaintiff's counsel was provided with professional courtesies in the past, are unjust.

3. Defendant's request for sanctions are **denied**. Plaintiffs' motion was not done in bad faith. The Court finds substantial justification in granting this motion.

4. Each party shall bear their own costs and fees for prosecuting and defending against this motion.

5. Plaintiff's counsel shall prepare and e-file a proposed order that conforms to this ruling, attaching the tentative ruling, no later than ten (10) days from the date of this hearing.

6. The issue conference calendared May 15, 2026 and the trial, calendared for June 22, 2026, are confirmed.

24. 9:01 AM CASE NUMBER: C25-02047
CASE NAME: PETER MOREN VS. KATHRYN ROGERS
***HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITION OF DEF KATHRYN CRAFT ROGERS**
FILED BY: MOREN, PETER GEORGE
****TENTATIVE RULING:****

Summary

Plaintiff George Moren ("Plaintiff") filed a Motion to Compel Deposition of Defendant Kathryn Rogers ("Defendant") on March 3, 2026. Plaintiff makes this motion on the grounds that Defendant has failed to appear for her deposition duly noticed and/or rescheduled the noticed deposition multiple times. In reviewing the moving and opposition papers, the Court notes that Defendant had submitted to her deposition on March 31, 2026. The Court finds and orders that this motion is **moot**. No appearance is required at the hearing on April 29, 2026.

This motion should have been vacated by Plaintiff. Plaintiff's request for sanctions in the form of attorney's fees and costs is **denied**. However, the Court orders that Plaintiff may recover the costs of the certified shorthand reporter retained for any missed depositions for which a court reporter had appeared and for which Plaintiff had paid the appearance fees of the court reported. Plaintiff shall provide a declaration, including an invoice for costs incurred for Defendant's missed deposition, to Defendant's Counsel. The costs shall be paid within thirty (30) days.